

VCU318452 Felix, Jose vs. D.R. Klassen Packing, Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-15

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Felix, Jose vs. D.R. Klassen Packing, Inc.

Case No.: VCU318452

Date: September 15, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Continued Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion; to set the motion for final approval for April 13, 2027, 8:30 am, Dept. 2.

Background

On August 24, 2026, Plaintiff's counsel filed a supplemental declaration addressing the notice period, lodestar, presently incurred costs and proof of submission to the LWDA.

Class Notice

The settlement agreement provides no claim form will be required of class members to participate in distributions. Only those wishing to object or opt out must file notice with the settlement administrator.

Objections or opt out notices are now to be made within 60 days.

The Court regularly approves notice periods of 60 days or longer. The class notice period, therefore, is approved.

Attorneys' Fees and Costs

Attorneys' fees of 33 1/3% of the gross settlement fund of \$100,000 or \$33,333.33 and costs not to exceed \$10,000 are sought by Plaintiff's counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel Mirabel indicates that the firm has spent 147 hours on this case, at a self adjusted rate of \$700 per hour resulting in a lodestar of \$ 102,900. (Supplemental Declaration of Mirabel ¶6.)

Counsel has also provided the current costs expended in amounts of \$7,341.26 (Supplemental Declaration of Mirabel ¶8.) The Court preliminarily approves costs not to exceed \$10,000.00.

LWDA Notice

Counsel's declaration indicates confirmation from the LWDA of receipt of proof of submission of the proposed settlement agreement. (Lab. Code, § 2699, subd. (s)(2).) (Declaration of Supplemental Mirabel ¶9 – Exhibit 4.) However, the Court notes no Exhibit 8 attached to the declaration.

Therefore, the Court grants the motion and Plaintiff's deductions from the gross settlement of \$100,000 are preliminarily approved as follows:

Preliminarily Approved Attorney Fees (33.3%):

\$33,333.33

Preliminarily Approved Attorney Costs (up to):

\$10,000.00

Preliminarily Approved Enhancement Payment to Plaintiff:

\$1,500.00

Preliminarily Approved Settlement Administrator Costs

\$10,000.00

Preliminarily Approved LWDA PAGA Payment

\$5,000.00

Preliminarily Approved Net Settlement Amount

\$40,166.67

The Court sets the motion for final approval for April 13, 2027, 8:30 am, Dept. 2.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.